

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

DOLLAR GENERAL LOGISTICS, LLC, *Complainant*

v.

YANG MING MARINE TRANSPORT CORP., *Respondent*.

DOCKET NO. 25-12

Served: September 16, 2025

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER GRANTING MOTION FOR ENTRY OF PROTECTIVE ORDER

On September 15, 2025, Complainant filed, with the consent of Respondent, a Consent Motion for Entry of Protective Order (“Motion”). The motion states that entry of a protective order “is necessary and required to enable the parties to fully respond to discovery requests, which may cover information and documents that are confidential, proprietary, and/or commercially sensitive.” Motion at 1.

The Initial Order issued in this proceeding states that: “The parties may agree and stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission. The parties may, but are not required to, file a courtesy copy of the agreement with the Commission.” Initial Order at 5.

The proposed protective order is reasonable however, the parties should note that confidential materials filed in the proceeding are addressed in the initial order:

21. *Use in the proceeding* --If confidential information is filed in a memorandum or as an exhibit to a dispositive motion or as part of briefing on the merits, it must be accompanied by a motion justifying confidential treatment. This motion must identify each item for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. 46 C.F.R. § 502.141(j)(1). The burden is on the party seeking to protect the information to show good cause for its protection.

Initial Order at 5.

Moreover, to the extent that the proposed protective order refers to filing dates that conflict with the Commission’s Rules, the Rules shall apply. When confidential versions of documents are filed with the Commission, a public version of the document must be filed within three (3) business days thereafter. 46 C.F.R. § 502.5(a)(2)(ii). Only the portions of documents

containing confidential material may be redacted in the public version. 46 C.F.R. § 502.5(a)(2)(iii). In addition, contrary to the terms of the proposed protective order at paragraphs 3(e)(iii) and 9(c), if a motion is filed with me contesting a designation of attorneys' eyes only ("AEO") or confidentiality, a response to the motion must be served with the opposing party and filed with the Commission within seven (7) days of the motion. 46 C.F.R. § 502.71(b).

The parties should note that after the initial decision is issued, I may not have authority to rule on issues arising from the proceeding, and that cannot be changed by agreement between the parties.

The parties have established good cause to enter the proposed protective order. Accordingly, the consent motion is **GRANTED**, and it is hereby **ORDERED** that the protective order be entered as modified by the above as an order in this proceeding.



Linda S. Harris Crovella
Administrative Law Judge